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Case Number: 26STCV05299 Hearing Date: June 30, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

MIKHAIL SIRETSKIY, et al.

Plaintiffs,

v.

GRIGORE ACATRINEI, et al.,

Defendants.

Case No: 26STCV05299

Hearing Date: June 30, 2026

Calendar Number: 16

Defendants Viorel Cekan, Olesea Cekan a.k.a

Olesea Zaremschi, BalancePush, LLC, and Vellostar LLC move for an order striking the First Amended Complaint ("FAC") of Plaintiffs

Mikhail Siretskiy and Marina Siretskiy on the ground that it is a strategic

lawsuit against public participation (SLAPP).

Defendants Grigore

Taran, Gene Heal, Inc., and Heal Trend, Inc. also move for an order striking the FAC on the ground that it is a SLAPP.

Defendants Grigore

Acatrinei and Olga Acatrinei also move for an order striking the FAC on the ground that it is a SLAPP.

Defendants Igor

Boghean, Eugeniu Catana, Mihail Irodoi, Red Bull Movers, Inc., Alex&Company LLC, and Mark & Company, Inc. also move for an order striking the FAC on the ground that it is a SLAPP.

Defendants' Anti-SLAPP motions are GRANTED.

Background

On

February 17, 2026, Plaintiffs Mikhail

Siretskiy and Marina Siretskiy ("Plaintiffs") filed a complaint against Defendants Grigore Acatrinei ("Acatrinei"), Olga Acatrinei ("Olga"), Viorel Cekan ("Cecan"), Olesea Cekan ("Olesea"), Igor Boghean ("Boghean"), Eugeniu Catana ("Catana"), Mihail Irodoi ("Irodoi"), Grigore Taran ("Taran"), Monika Norashkharyan ("Norashkharyan"), BalancePush, LLC, Vellostar LLC, Alex & Company LLC, Red Bull Movers, Inc. Mark & Company, Inc., Gene Heal Inc., and Heal Trend Inc.

On April 21, 2026, Plaintiffs filed the FAC

against Defendants, alleging 10 causes of action for: (1) fraud/intentional misrepresentation; (2) unlawful business practices; (3) abuse of process; (4) civil extortion; (5) defamation (libel and slander per se); (6) intentional infliction of emotional distress; (7) unjust enrichment/restitution/constructive trust; (8) aiding and abetting tortious conduct; (9) malicious harassment/ Bane Act; and (10) civil conspiracy.

The FAC alleges that this action arises from a

coordinated scheme of fraudulent inducement, misappropriation of funds, litigation, and extrajudicial intimidation orchestrated by Defendant Norashkharyan and knowingly advanced by Defendants Acatrinei, Olga, Cekan, Olesea,

Boghean, Catana, Irodoi, and Taran ("Defendants").

Plaintiffs allege that between 2017-2021, certain Defendants entered legitimate, arms-length private investment agreements exclusively with Siretskiy Real Estate, LLC ("SRE"). Plaintiffs allege that beginning in or about December 2021, Defendant Norashkharyan initiated a separate and independent fraudulent investment scheme. Plaintiffs and several Defendants were induced to provide substantial funds based on false representations that the investments were secure, short-term, high-yield, and risk-free, with guaranteed repayment within six to eight weeks.

Plaintiffs allege that acting in reliance on those representations, Plaintiffs entrusted Norashkharyan with funds specifically reserved for completion and refinancing of their family residence at Cangas Drive, Calabasas, as well as additional funds borrowed from private lenders at high interest rates. Instead of investing or safeguarding those funds, Norashkharyan misappropriated and retained exclusive control over all invested capital for her personal use and benefit.

Plaintiffs allege that Defendants Acatrinei, Cecan, Boghean, Catana, Irodoi, and Taran were aware that Norashkharyan alone possessed and controlled the invested funds, including funds they themselves had provided, and that Plaintiffs and SRE did not control or manage those monies. Nonetheless, they continued to cooperate with Norashkharyan and later concealed her central role when the scheme began to unravel.

Plaintiffs allege that in or about March 2023, rather than pursuing recovery from Norashkharyan, who held the funds, Defendants acted collectively to deflect liability by filing a knowingly false civil action against Plaintiffs, asserting fabricated debt claims of approximately \$500,000, unsupported by any contract, note, or documentary evidence.

Plaintiffs also claim that Defendants further republished those false accusations outside the judicial process, including to Plaintiffs' business associates and members of their minor child's school community, inflating the alleged indebtedness to \$700,000 in communications to third parties and causing severe reputational, professional, and emotional harm.

On April 29, 2026, Defendants filed these anti-SLAPP

motions as to the FAC. On June 22, 2026, Plaintiffs filed an untimely Opposition. On June 23, 2026, Defendants filed a Reply.

Request for Judicial Notice

Defendants' Request for Judicial Notice is GRANTED for all requested documents as to "the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents." (Glaski v. Bank of America (2013) 218 Cal.App.4th 1079, 1090.)

Legal Standard

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc., § 425.16.)

Courts follow a two-step process in evaluating an anti-SLAPP motion under section 425.16. (Shekhter v. Financial Indem. Co. (2001) 89 Cal.App.4th 141, 150.) First, the court must decide whether the defendant has shown that the plaintiff's cause of action arises from a constitutionally protected act of free speech or petition for redress of grievances by the defendant. (Ibid.) Code of Civil Procedure section 425.16, subdivision (e) sets forth four categories of protected conduct; the defendant's burden may be met by showing that the conduct forming the basis for the plaintiff's claims falls within any one of these categories. (See Code Civ. Proc., § 425.16, subd. (e).)

Once a defendant has met its initial burden by showing that the underlying conduct is protected activity, the burden shifts to the plaintiff to demonstrate a probability of success on the merits. (Code Civ. Proc., § 425.16, subd. (b); Equilon Enters. LLC v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67.) "[T]he plaintiff must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima

facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (Matson v. Dvorak (1995) 40 Cal.App.4th 539, 548 [internal quotation marks omitted].)

Discussion

Defendants move to strike the FAC on the ground that the allegations in all 10 causes of action arise from protected activity under Code of Civil Procedure sections 425.16(e)(1), and 425.16(e)(2).

As an initial matter, Plaintiffs filed an Untimely Opposition. The Court exercises its discretion to consider it, as Defendants do not argue they were prejudiced by the untimely filing and have submitted a Reply on the merits.

First Step: Defendants’ Burden of Establishing Claims Arise from Protected Activity

[T]he only thing the defendant needs to establish to invoke the protection of the SLAPP statute is that the challenged lawsuit arose from an act on the part of the defendant in furtherance of her right of petition or free speech.”² (Fox Searchlight Pictures, Inc. v. Paladino (2001) 89 Cal.App.4th 294, 307.)²

An “act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue” includes the following:

1.
any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law,²
2.
any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.²

3.

any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or

4.

any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(Code Civ. Proc., § 425.16, subd. (e).)

Protected
Activity

Defendants

argue that the causes of action all arise from statements, writings or pleadings made in connection with a prior lawsuit between the parties, including the filing of the lawsuit, which they argue is protected activity under Code of Civil Procedure section 425.16(e)(1) and 425.16(e)(2).

A defendant has the “burden of identifying all allegations of protected activity” on the 1st step of SLAPP.” (Bel Air Internet, LLC v. Morales (2018) 20 Cal.App.5th 924, 936-937.) Defendant only meets this burden by demonstrating that the act underlying the plaintiff’s cause of action “fits one of the categories spelled out in section 425.16, subdivision (e).” (Sprengel v. Zbylut (2015) 241 Cal.App.4th 140, 150.)

Protected activity

includes “any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law.” (Code Civ. Proc., § 425.16, subd. (e)(2).) This provision is “construed broadly, to protect the right of litigants” and applies to a communication “if it has ‘some relation’ to judicial proceedings.” (Healy v. Tuscany Hills Landscape & Recreation Corp. (2006) 137 Cal.App.4th 1, 5.) “[A] statement is ‘in connection with’ litigation under section

425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1266.)

Defendants identify two categories of allegations that they argue constitute protected activity. The allegations relating to Defendants filing a lawsuit against Plaintiffs, and the allegations relating to Defendants publicizing the lawsuit to non-parties.

The Court agrees that the filing of the lawsuit is protected activity. The filing of a complaint is a “writing made in connection with an issue under consideration or review by a . . . judicial body.” (Mundy v. Lenc (2012) 203 Cal.App.4th 1401, 1408-09.)

In opposition, Plaintiffs argue that the allegations relating to publicizing the lawsuit to others is not protected activity. The Court disagrees. The statement was “in connection with” litigation because it was directed to persons having some interest in the litigation. (Neville, supra, 160 Cal.App.4th at 1266.) The FAC alleges Defendants republished the alleged false accusations outside the judicial process, including to Plaintiffs’ business associates and members of their minor child’s school community.

As noted above, in construing the term “in connection with” pending or anticipated litigation, case law has consistently afforded broad protection to statements directed to non-parties. (Neville, supra, 160 Cal. App. 4th at 1270 [letter warning customers to avoid doing business with former employee to preclude the risk of being ensnared as material witnesses was protected activity because it directly related to the claims against the party, and was directed to persons who had an interest in the dispute]; (Contemporary Services Corporation v. Staff Pro Inc. (2007) 152 Cal.App.4th 1043, 1055 [e-mail to customers accusing competitor of litigation-related misconduct was protected activity because it constitutes a litigation update, describing the parties’ contention and court rulings, and was directed to individuals who had some involvement in litigation]; Healy, supra, 137 Cal.App.4th1, 5–6 [letter from homeowners’ association to nonparty association members stating that it is performing weed abatement at additional cost because homeowner would not allow

access was protected speech because letter was to inform members of the association of pending litigation involving the association].)

The FAC alleges that

Defendants told Plaintiffs' business associates about the litigation. (FAC, ¶ 32.) The associates had an interest in the litigation claiming Plaintiffs owed Defendants money in that they also did business with Plaintiffs. This information would be helpful in order for the business associates to make an informed decision as to whether they should continue doing business with someone who allegedly owes others money.

Do the Claims "Arise from" Protected Activity?

"As our Supreme Court has recognized, 'the "arising from" requirement is not always easily met.' [Citation.] '[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute. [Citation.] Moreover, that a cause of action arguably may have been "triggered" by protected activity does not entail that it is one arising from such.' [Citation.] 'A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, "the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech." [Citations.]'[Citation.]

'[I]n ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.' [Citation.] Put another way, courts should first identify 'the allegedly wrongful and injury-producing conduct that provides the foundation for the claims,' and then determine whether that conduct itself constitutes protected activity. [Citations.]" (Callanan v. Grizzly Designs, LLC (2022) 81 Cal.App.5th 517, 526 (Callanan) [citing Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057, 1062-1063].)

After demonstrating that its conduct constitutes protected activity, a defendant must then demonstrate that its protected conduct supplies one or more elements of a plaintiff's claim. (Williams v. Doctors Medical Center of Modesto, Inc. (2024) 100 Cal.App.5th 1117, 1135.)

“[T]he

mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.” (Park v. Board of Trustees of California State University, supra, 2 Cal.5th at 1063.)

First,

Defendants’ request to strike the entire FAC is denied. Defendants only point out certain allegations in the FAC they argue arise from protected activity. “[A]n anti-SLAPP motion, like a conventional motion to strike, may be used to attack parts of a count as pleaded.” (Baral v. Schnitt (2016) 1 Cal.5th 376, 393 [emphasis added].) “[W]hile courts may strike less than the entirety of a complaint or pleaded cause of action, the trial court is not required to take on the burden of identifying the allegations susceptible to a special motion to strike. If a defendant wants the trial court to take a surgical approach, whether in the alternative or not, the defendant must propose where to make the incisions. This is done by identifying, in the initial motion, each numbered paragraph or sentence in the complaint that comprises a challenged claim and explaining ‘the claim’s elements, the actions alleged to establish those elements, and wh[y] those actions are protected.’ ” (Id. at p. 1109, quoting Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1015.)

Thus, this is a mixed cause of action, where there are protected speech and unprotected speech. The Court will address Defendants’ specific allegations as to each cause of action that they allege arise out of protected activity. Plaintiffs argue in opposition that Defendants have failed to supply the elements of the causes of action to satisfy the first step of the analysis. The Court notes however that Plaintiffs’ FAC contains these allegations under the section for each element of the causes of action.

Defendants successfully demonstrate that the following allegations in the FAC are protected activity which at the very least the Court can say supply elements of all the FAC’s causes of action to satisfy the first step of the SLAPP analysis:

The First Cause

of Action for Fraud is based on allegations that Defendants “asserted false debt claims” against the Siretskiys and that Defendants “filed and publicized a civil action asserting fabricated debt claims” against the Siretskiys. (FAC, ¶¶ 86(b), 97.) As noted in the FAC, these allegations supply the misrepresentation element for fraud.

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The Second Cause

of Action for Unlawful Business Practices is based on allegations that Defendants “weaponized California’s judicial system” and “fil[ed] and publiciz[ed] a knowingly false civil action.” (Id., ¶¶ 109; 112(b).) Paragraph 109 of the FAC supplies the unlawful business practice element, and paragraph 112(b) supplies the fraudulent scheme element of this claim.

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The Third Cause

of Action for Abuse of Process is based on allegations that Defendants filed a civil action asserting “fictitious ‘personal debt’ claims” against the Siretskiys. (Id., ¶¶ 123; 126.) As noted in the FAC, these allegations supply the element of improper use of process for the abuse of process cause of action. Claims for abuse of process generally arise from protected activity under the anti-SLAPP statute. “The gravamen of the claim is misconduct in the underlying litigation. Indeed, that is the essence of the tort of abuse of process—some misuse of process in a prior action—and it is hard to imagine an abuse of process claim that would not fall under the protection of the statute. Abuse of process claims are subject to a special motion to strike.” (Booker v. Rountree (2007) 155 Cal.App.4th 1366, 1370.)

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The Fourth Cause

of Action for Civil Extortion is based on allegations that Defendants began demanding repayment of the funds they had invested with the Siretskiys in advance of litigation and then filed and publicized “a knowingly fabricated civil action.” (Id., ¶ 150-152.) The Court notes that although Defendants cite to many paragraphs, only paragraphs 150-152 contain the allegations regarding the protected activity that supplies the element of a coercive act. In the event Defendants are claiming the demand for money was

prelitigation activity, they failed to adequately argue and elaborate on this, and thus, did not meet their burden as to the pre litigation demands.

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The Fifth Cause

of Action for Defamation (Libel and Slander Per Se) is based on allegations that Defendants made false statements of fact concerning the Siretskiys in pleadings and statements to third parties. (Id., ¶¶ 165-169, 175-176.) These allegations supply the element of false statements.

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The Sixth Cause

of Action for Intentional Infliction of Emotional Distress is based on allegations that Defendants' filing and publicizing of a false and defamatory lawsuit caused the Siretskiys to suffer emotional distress, including two hospitalizations by Marina Siretskiy. (FAC, ¶¶ 30-31, 212-213.) While Defendants cite to more paragraphs, the Court notes that only paragraphs 30-31 and 212-213 contain the protected activity. The protected activity in Paragraphs 212-213 supply the element of extreme and outrageous conduct.

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The Seventh Cause

of Action for Unjust Enrichment is based on allegations that "Defendants filed and publicized a knowingly false civil action" against the Siretskiys. (Id., ¶¶ 237-239.) This allegation supplies the element for a retained benefit.

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The Eighth Cause

of Action for Aiding and Abetting Tortious Conduct is based on allegations that Defendants filed, endorsed, and publicized the knowingly false and defamatory lawsuit to mask Norashkharyan's fraud. (Id., ¶ 247(a).) This allegation supplies the element of substantial assistance.

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The Ninth Cause

of Action for Malicious Harassment under the Bane Act is based on allegations that Defendants demanded payment of funds that were not lawfully owed and then filed a knowingly false lawsuit. (Id., ¶ 257(b).) The Court notes that while Defendants cite to paragraph 257(a), this is not the protected activity. However, the allegations in Paragraph 257(b) supplies the element for coercive

and intimidating conduct under this cause of action.

Finally, the

Tenth Cause of Action for Civil Conspiracy is based on allegations that Defendants “engaged in a coordinated campaign of defamation, abuse of process and harassment, including filing and publicizing a knowingly false lawsuit.” (Id., ¶ 273(2)(a).) This element supplies the element of participation in the conspiracy.

Defendants also point

out that in addition, Paragraphs 30 and 61 of the FAC, alleging that Defendants filed a “knowingly false civil action” against the Siretskiys “asserting fabricated debt claims,” are incorporated in all ten causes of action alleged in the FAC and form the basis for Defendants’ asserted liability on each of these claims. (See FAC, ¶¶ 30, 61.)

Accordingly, all of

these allegations arise from protected activity. Defendants have met their burden on the first step. The Court notes that the Defendants have met their initial burden only as to the allegations identified above and discussed herein, and not the entire causes of action.

Exception to Anti-SLAPP

motion in *Flatley v. Mauro* (2006) 39 Cal.4th 299

The Court notes that

although not argued in the Opposition, the FAC cites to *Flatley v. Mauro* (2006) 39 Cal.4th 299, which held, “[W]here a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff’s action arises from activity by the defendant in furtherance of the defendant’s exercise of protected speech or petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff’s action.” (Id. at p. 320.) When “a factual dispute exists about the legitimacy of the defendant’s conduct, it cannot be resolved within the first step but must be raised by the plaintiff in connection with the plaintiff’s burden to show a probability of prevailing on the merits.” (Id. at p. 316.)

Here, Defendants do not concede, and Plaintiffs' evidence does not conclusively establish, that the alleged speech was illegal as a matter of law.

Moreover, Flatley noted,

"In reaching this conclusion, we emphasize that the question of whether the defendant's underlying conduct was illegal as a matter of law is preliminary, and unrelated to the second prong question of whether the plaintiff has demonstrated a probability of prevailing, and the showing required to establish conduct illegal as a matter of law—either through defendant's concession or by uncontroverted and conclusive evidence—is not the same showing as the plaintiff's second prong showing of probability of prevailing." (Flatley, *supra*, 39 Cal.4th at p. 320.) Flatley expressly did not reach the second step of the analysis.

This

rule regarding protected activity "applies only to criminal conduct." (Bergstein v. Stroock & Stroock & Lavan LLP (2015) 236 Cal.App.4th 793, 806.) "A long line of cases have concluded in the wake of Flatley that its exception for illegal conduct is a 'very narrow' one, one that applies 'only "where either the defendant concedes the illegality of its conduct or the illegality is conclusively shown by the evidence." ' " (Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP (2017) 18 Cal.App.5th 95, 115, fn. 7.)

"The Courts of Appeal

analyzing the Supreme Court's decision in Flatley have found the use of the phrase 'illegal' in Flatley was intended to mean criminal, not merely a violation of a statute." (Towner v. County of Ventura (2021) 63 Cal.App.5th 761, 771.) It is plaintiff's burden. (Id. at p. 769.)

Thus, Flatley does not apply.

The Court therefore

moves to the next step, under which Plaintiffs must present admissible evidence establishing they are likely to prevail on these causes of action.

Second Prong: Probability of Success

When

defendants carry their initial burden to make a prima facie showing that the claims are subject to CCP § 425.16, the burden shifts to the plaintiff to establish a probability that they will prevail at trial on that claim by making a prima facie showing on that claim. (Roberts v. Los Angeles County Bar Assoc. (2003) 105 Cal.App.4th 604, 613.) “Put another way, the plaintiffs ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’ [Citations.]” (Feldman v. 1100 Park Lane Associates (2008) 160 Cal.App.4th 1467, 1477-78.) “Thus, plaintiffs’ burden as to the second prong of the anti-SLAPP test is akin to that of a party opposing a motion for summary judgment.” (Id.) While the Court does not weigh the evidence, “the trial court must consider facts so as to make a determination whether [Cross-Complainants] can establish a prima facie probability of prevailing on [their] claims.” (Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th 903, 921.) “If there is a conflict in the evidence (the existence of a disputed material fact), the anti-SLAPP motion should be denied. (Citizens of Humanity, LLC v. Hass (2020) 46 Cal.App.5th 589, 598.)”

“An

anti-SLAPP motion is an evidentiary motion.

Once the court reaches the second prong of the analysis, it must rely on admissible evidence, not merely allegations in the complaint or conclusory statements by counsel.” (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238 Cal.App.4th 200, 213.)

Litigation Privilege

Civil Code section 47,

subdivision (b), provides that a privileged publication or broadcast is one made “[i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2...of Title 1 of Part 3 of the Code of Civil Procedure...”

The judicial proceeding

privilege, also known as the “litigation privilege,” applies to communications (1) made in a judicial or quasi-judicial proceeding; (2) by litigants or other participants authorized by law; (3) to achieve the objects of litigation; and (4) that has some connection or logical relation to the action. (Dickinson v. Cosby (2017) 17 Cal.App.5th 655, 681-82.) The privilege “is not limited to statements made during a trial or other proceedings, but may extend to steps taken prior thereto, or afterwards.” [Citation.]” (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241.) “The test is: ‘To be protected by the litigation privilege, a communication must be “in furtherance of the objects of the litigation.” [Citation.] This is “part of the requirement that the communication be connected with, or have some logical relation to, the action, i.e., that it not be extraneous to the action.” [Citation.]’ ” (Id.)

;

Importantly, the litigation

privilege is an absolute privilege that applies to all publications, irrespective of their maliciousness, and bars all causes of action except for a claim of malicious prosecution. (Kenne v. Stennis (2014) 230 Cal.App.4th 953, 964-65.) The privilege is so broad it applies to the presentation of potentially false evidence. (Seltzer v. Barnes (2010) 182 Cal.App.4th 953, 969-70.) The Court in Seltzer explained:

“The principal purpose of the Civil Code section 47 litigation privilege ‘ “is to afford litigants and witnesses [citation] the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions. [Citations.]” [Citation.] The privilege promotes effective judicial proceedings by encouraging “ ‘open channels of communication and the presentation of evidence’ ” without the external threat of liability. [Citation.] The litigation privilege “further promotes the effectiveness of judicial proceedings by encouraging attorneys to zealously protect their clients’ interests.” [Citation.] “Finally, in immunizing participants from liability for torts arising from communications made during judicial proceedings, the law places upon litigants the burden of exposing during trial the bias of witnesses and the falsity of evidence, thereby enhancing the finality of judgments and avoiding an unending roundelay of litigation, an evil far worse than an occasional unfair result. [Citations.]” [Citation.]’ [Citation.] ‘

“Although originally enacted with reference to defamation actions alone [citation], the privilege has been extended to any communication, whether or not it is a publication, and to all torts other than malicious prosecution. [Citations.] Thus, the privilege has been applied to suits for fraud [citations], negligence and negligent misrepresentation [citation], and interference with contract [citation].” [Citation.]’ [Citation.]”

Here, the filing of the prior lawsuit is communication relating to the prosecution of a complaint. “The privilege applies to communications relative to the defense of an action as well as those relative to its filing and prosecution.” (Cabral v. Martins, (2009) 177 Cal.App.4th 471, 485.)

As to the allegations relating to republishing statements regarding the lawsuit, as noted above, the statements regarding the lawsuit were made to non-parties who had an interest in the lawsuit (they did business with Plaintiffs); thus, the statements were in connection with the lawsuit and had some logical relation to the lawsuit. (See Argentieri v. Zuckerberg, (2017) 8 Cal.App.5th 768 [attorney’s email to the press about lawsuit was not subject to the litigation privilege because it was emailed to the general public through the press, not to a group with a substantial interest in the case.].)

However, Plaintiffs argue the republication of the statements to third parties do not further the objects of litigation, which is the third requirement for the litigation privilege. (Dickinson v. Cosby, supra, 17 Cal.App.5th at 681-82.) The Court agrees. “[T]o be sufficiently in furtherance of the litigation, the communication must “function intrinsically, and apart from any consideration of the speaker’s intent, to advance a litigant’s case,” noting examples such as the actual pleadings, a lis pendens, demand letters and communications directed towards settlement, communications between a law firm and persons with potential claims, and investigatory interviews. (Rothman v. Jackson (1996) 49 Cal.App.4th 1134, 1148). A party’s legitimate objectives in the litigation are limited to the remedies which can be awarded by courts. Thus, the “objects of the litigation” for a plaintiff are to obtain a monetary recovery for damages or other relief. (Id., 1147-1148.) Defendants were the plaintiffs in the prior lawsuit. Thus, it is unclear how Defendants republishing the statements regarding that prior lawsuit furthers the objects of the litigation. They would not obtain their monetary recovery for damages by doing so. Defendants also do not make any argument in

the Reply to satisfy this test. Thus, the Court finds that the litigation privilege does not apply to the allegations relating to republishing the lawsuit to others.

But, as noted above, the litigation privilege applies to the allegations relating to the filing of the lawsuit itself. “A plaintiff cannot establish a probability of prevailing if the litigation privilege precludes the defendant’s liability on the claim.” (*Digerati Holdings, LLC v. Young Money Entertainment, LLC* (2011) 194 Cal.App.4th 873, 888.) Thus, the motion is granted as to the allegations relating to the filing of the lawsuit.

Plaintiffs’ Evidence as to a Probability of Prevailing on their Claims

In causes of action arising from both protected and nonprotected activity, the opposing party must show that “each challenged claim based on protected activity is legally sufficient and factually substantiated.” The court, without resolving evidentiary conflicts, must determine whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment. If not, the claim is stricken.” (*Baral v. Schnitt, supra*, 1 Cal.5th at 396.) Furthermore, the opposing party may not “defeat an anti-SLAPP motion by establishing a probability of prevailing on any part of a pleaded cause of action.” Rather, the plaintiff must make the requisite showing as to each challenged claim that is based on allegations of protected activity [W]hen the defendant seeks to strike particular claims supported by allegations of protected activity that appear alongside other claims within a single cause of action, the motion cannot be defeated by showing a likelihood of success on the claims arising from unprotected activity.” (See *id.* at p. 392.)

In order to show the challenged portions of their causes of action have merit, Plaintiffs present evidence that there was republication of the lawsuit outside the judicial process, including communications to business contacts and persons associated with Plaintiffs’ child’s school community. (Mikhail Decl. ¶¶12–17, Ex. C; Marina Decl. ¶¶11–14, Ex. C.) In the cited evidence, Mikhail declares that he personally spoke with a parent of his child’s classmates

concerning those accusations. During that conversation, he avers, the parent confirmed that Defendant Irodoi had forwarded messages and materials concerning Plaintiffs and made negative and defamatory oral statements in concert with other Defendants about Plaintiffs. (Mikhail Decl., ¶ 13.) However, this is inadmissible hearsay. There is no declaration from the parent who told Plaintiff Mikhail this. It is simply what Mikhail says the parent said. Further, Exhibit C, which Plaintiff states is a text message from the parent, does not help because in this text message, the parent does not identify anyone that made these alleged republications. It merely states, “this is what the guy showed me” and contains a link to the lawsuit on a website. Marina’s declaration similarly includes inadmissible hearsay. The burden is on the plaintiff to produce evidence that would be admissible at trial—i.e., to proffer a prima facie showing of facts supporting a judgment in plaintiff’s favor. (Chavez v. Mendoza (2001) 94 Cal.App.4th 1083, 1087.) Therefore, Plaintiffs have not submitted admissible evidence that Defendants made these alleged republications.

The Court notes that all of the remaining challenged portions of the causes of action rely on the allegation that Defendants republished false debt claims, for which Plaintiffs have failed to submit admissible evidence. Therefore, Plaintiffs have failed to meet their burden of showing their claims have minimal merit.

Moreover, Plaintiffs failed to meet their burden because they do not address every element of each of their claims. The following are some examples:

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Here, Plaintiffs do not show there was an intent to defraud, or justifiable reliance. Nor can the Court see these allegations in the FAC.

“The elements of the tort of intentional infliction of emotional

distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903, internal quotations omitted.)

Plaintiffs do not present evidence they suffered severe or extreme emotional distress. Plaintiffs allege severe emotional harm to their child, who is not a plaintiff in this case. This is not sufficient. Nor are the allegations of the FAC as to Marina's emotional distress sufficient, as evidence must be presented.

The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. (See Wong v. Tai Jing (2010) 189 Cal.App.4th 1354, 1369.)

As noted above, Plaintiffs failed to submit admissible evidence of Defendants' publication.

As the final example, Plaintiffs' UCL claim fails under the fraud prong fails because Plaintiffs fail to show how the public is likely to be deceived by Defendants' conduct. A fraudulent business practice claim under Section 17200 "is not based upon proof of the common law tort of deceit or deception, but is instead premised on whether the public is likely to be deceived." (Pastoria v. Nationwide Ins. (2003) 112 Cal.App.4th 1490, 1499.)

As such, Plaintiffs failed to show they have a probability of prevailing. Accordingly, Defendants' anti-SLAPP motions are GRANTED.

Attorney Fees

Defendants seek attorneys' fees against Plaintiffs pursuant to CCP section 425.16(c).

Code of Civil Procedure section 425.16,

subdivision (c)(1) provides that a prevailing defendant on a special motion to strike shall be entitled to recover attorney's fees and costs. (Code Civ. Proc., § 425.16, subd. (c)(1).)

Defendants are entitled to attorney fees and costs. But Defendants state the amount is to be determined after the hearing. "[A] defendant who prevails on an anti-SLAPP motion has three avenues by which to seek prejudgment attorney's fees relating to the filing of the anti-SLAPP motion: (1) in the anti-SLAPP motion itself; (2) by a subsequent noticed motion; or (3) as part of a memorandum of costs." (Briggs v. Elliott (2023) 92 Cal.App.5th 683, 692.) There is therefore no issue of an award of attorney fees/costs at this time.